



End User License Agreement

This End User License Agreement ("EULA") is between Newcode.ai, INC ("Newcode," "we," "us," or "our") and the person or entity accepting it ("User", "you" or "your"). It governs your access to and use of the Newcode.ai platform, related software, documentation, and services (collectively, the "Services").

We license use of the Services to you based on this EULA. We do not sell the Services to you. We, or our licensors, always remain the owners of the Services and Platform.

If you accept this EULA on behalf of a company or other organization, you represent that you have authority to bind that organization, and "you" includes that organization and its authorized users.

Access to the Services may be purchased or provided through an authorized reseller or other intermediary. Any reseller or intermediary is not a party to this EULA. Any ordering, billing, taxes, payment disputes, credits, refunds, and similar commercial terms agreed with a reseller or intermediary apply only between you and that reseller or intermediary unless Newcode expressly agrees otherwise in writing. This EULA governs your access to and use of the Services only and does not create any independent service-level, support, refund, data-export, or other commercial rights except as expressly stated in this EULA or required by mandatory applicable law.

By clicking "Accept," accessing, or using the Services, you agree to this EULA. If you do not agree, you may not use the Services.

1. LICENSE GRANT

Subject to this EULA and the scope of access made available to you, Newcode grants you a limited, non-exclusive, non-transferable, non-sublicensable, revocable license during your period of authorized access to access and use the Services solely for your internal business operations.

You may permit only your authorized employees, contractors, and personnel acting on your behalf to use the Services. Each user must have a separate account. Accounts are personal and may not be shared. You must promptly disable access for any user who no longer acts on your behalf or no longer requires access.

2. YOUR RESPONSIBILITIES

You are responsible for your use of the Services, for all Customer Content, for all acts and omissions of anyone accessing the Services through your accounts or on your behalf, and for maintaining the security, legality, accuracy, and appropriateness of your systems, credentials, configurations, and use cases.

You will, and will ensure that your users will:

- a) keep account credentials secure and confidential;
- b) use the Services only in compliance with applicable law and this EULA;
- c) use reasonable security measures, including virus protection and customary safeguards, to avoid introducing malicious code or harmful material into the Services;



- d) promptly notify Newcode if you learn or suspect that malicious code, unauthorized access, or other misuse has affected the Services through your account, device, or use;
- e) submit only content, data, prompts, files, and other materials that you have the right to submit and use;
- f) review outputs critically before relying on them; and
- g) comply with any mandatory onboarding, platform hygiene, and foundational AI training requirements made available by Newcode.

3. RESTRICTIONS

You will not, and will not permit any third party to:

- a) copy, modify, distribute, republish, download, display, transmit, create derivative works from, lease, sell, sublicense, or otherwise exploit the Services;
- b) decompile, reverse compile, disassemble, reverse engineer, or otherwise reduce the Services to a human-perceivable form;
- c) access or use the Services to build, train, improve, or support a competing product or service;
- d) use the Services to provide services to third parties or otherwise use them outside your internal business operations;
- e) obtain or attempt to obtain access to the Services other than as authorized;
- f) upload, submit, reproduce, process, or distribute content that is unlawful, harmful, harassing, offensive, or infringes another person's rights;
- g) scrape, extract, harvest, or bulk-download data, prompts, outputs, or other content from the Services;
- h) conduct load testing, penetration testing, vulnerability scanning, or similar testing of the Services without Newcode's prior written consent;
- i) use the Services in violation of applicable trade restrictions, sanctions, or other applicable law; or
- j) use the Services in a way that interferes with, disrupts, or risks the security, integrity, availability, or proper operation of the Services.

Newcode may immediately suspend, exclude, or restrict access to the Services, without liability, if it reasonably suspects misuse, abuse, breach of this EULA, or violation of applicable law.

4. CUSTOMER CONTENT

"Customer Content" means content, data, prompts, documents, files, and other materials submitted to the Services by or on your behalf. As between you and Newcode, you retain ownership of Customer Content and are solely responsible for its legality, reliability, integrity, accuracy, and quality.

You grant Newcode and its subcontractors a non-exclusive, royalty-free license during the term of this EULA and any applicable transition, export, retention, or deletion period to host, process, transmit, display, and use Customer Content solely to provide, secure, maintain, support, troubleshoot, improve, and protect the Services, prevent or address abuse or security risks, comply with applicable law, enforce this EULA, and create or use de-identified or aggregated information that does not identify you or any individual.

Newcode will not use Customer Content to train third-party or general-purpose AI models unless you expressly agree in writing. However, this restriction does not limit Newcode's right to use Usage Data, metadata,



telemetry, logs, feedback, performance information, or de-identified or aggregated information to operate, secure, maintain, support, develop, and improve the Services.

You are solely responsible for the legality, accuracy, integrity, and appropriateness of Customer Content and for obtaining all rights, permissions, and consents needed for its use with the Services.

5. PRIVACY, SECURITY, CONFIDENTIALITY AND THIRD-PARTY SERVICES

Use of the Services is subject to Newcode's applicable privacy notice and any applicable security or product documentation made available by Newcode.

Newcode will maintain appropriate technical and organizational measures designed to protect Customer Content against unauthorized access, disclosure, alteration, loss, or destruction. Newcode's current security information is available at trust.newcode.ai. Newcode may update its security measures from time to time, if it does not materially reduce the overall level of protection for Customer Content.

Each party will treat non-public information exchanged in connection with the Services and this EULA as confidential and will not disclose it to third parties except as required by applicable law or with the other party's consent. Each party will use reasonable precautions to protect such information. This section survives termination.

You acknowledge that the Services rely on third-party providers, including cloud, network, identity, and AI model providers, and that certain features may be subject to third-party terms. Newcode is not responsible for failures, delays, downtime, errors, or other loss arising from third-party providers or from systems outside Newcode's control, including your networks, internet connections, devices, credentials, or configurations.

6. QUALITY OF SERVICES

The Services use generative AI. Outputs may be inaccurate, incomplete, biased, irrelevant, inappropriate, or nonsensical, including because of edge cases, hallucinations, input quality, model limitations, limited domain expertise, bias amplification, token limits, third-party model behavior, or the quality, legality, or completeness of input data.

You are solely responsible for reviewing outputs and determining whether they are appropriate for your use. Outputs are not legal, financial, accounting, tax, medical, regulatory, or other professional advice and should not be relied on as a substitute for professional judgment.

Newcode may update, modify, replace, or remove features of the Services from time to time. Newcode will use reasonable efforts to give advance notice of changes that are likely to have a material effect on your use of the Services.

7. SUPPORT AND COMMERCIAL TERMS

Unless Newcode expressly agrees otherwise in writing, this EULA does not provide any independent service-level commitment, service credit, refund right, or other commercial remedy.



If your access is purchased or provided through an authorized reseller or other intermediary, any reseller-provided support, billing, credits, refunds, taxes, or other commercial terms are matters between you and that reseller or intermediary.

No reseller or intermediary may modify this EULA or make warranties, representations, service levels, refund commitments, or other binding commitments on Newcode's behalf unless Newcode expressly agrees in writing.

Unless Newcode expressly agrees otherwise in writing, this EULA does not provide any service-level commitment, service credit, refund right, or other commercial remedy.

8. INTELLECTUAL PROPERTY

Except for the limited license expressly granted in this EULA, no rights are granted to you in the Services.

The Services, including all software, workflows, interfaces, documentation, designs, and related intellectual property rights, are owned by Newcode or its licensors.

Except for the limited license expressly granted in this EULA, Newcode reserves all rights in and to the Services. Newcode confirms that it has the rights necessary to grant the rights in this EULA and in the Services.

If you provide suggestions, ideas, enhancement requests, recommendations, corrections, or other feedback relating to the Services, you grant Newcode a perpetual, irrevocable, worldwide, transferable, sublicensable, royalty-free license to use, disclose, reproduce, modify, distribute, commercialize, and otherwise exploit that feedback without restriction, attribution, or compensation to you.

9. SUSPENSION AND TERMINATION

This EULA begins when you accept it or first use the Services and continues while you have authorized access to the Services.

Newcode may suspend, restrict, or terminate your access immediately, in whole or in part, with or without prior notice, if:

- a) you breach this EULA;
- b) Newcode reasonably suspects misuse, unlawful activity, nonpayment, excessive or unauthorized use, a security risk, a violation of third-party terms, or any use that may expose Newcode, its affiliates, its providers, or other users to liability, operational risk, reputational harm, or legal or regulatory risk; or
- c) the subscription or reseller arrangement under which your access was provided ends or is suspended.

Upon termination or expiration, your right to use the Services ends immediately and you must stop using the Services and any documentation made available by Newcode that remains in your possession or control and must delete or return any Newcode documentation, credentials, confidential information, and other materials in your possession or control. Termination or expiration will not limit Newcode's accrued rights or remedies.

For at least 30 calendar days after termination or expiration, Newcode will make Customer Content available for export or return in a commonly used electronic format, unless termination results from Newcode's uncured material breach. After that period, unless otherwise agreed or required by applicable law, Newcode will delete



Customer Content from active systems and delete remaining backups in accordance with its ordinary backup deletion cycles.

Newcode may retain or delete Customer Content after termination in accordance with applicable law, its applicable privacy and retention practices, any applicable data processing terms, and any written terms governing the relevant subscription or reseller arrangement.

10. DISCLAIMERS AND LIMITATION OF LIABILITY

Newcode will provide the Services in a professional manner consistent with general industry standards, but except as expressly fully stated in this EULA and permitted by law, the Services are provided "AS IS" and "AS AVAILABLE." Newcode disclaims all implied warranties, including merchantability, fitness for a particular purpose, non-infringement, and any warranty that the Services will be uninterrupted, error-free, or meet your specific requirements.

To the fullest extent permitted by law, Newcode will not be liable for any indirect, incidental, special, consequential, exemplary, punitive, or enhanced damages, or for any loss of profits, revenues, business, goodwill, reputation, data, content, use, savings, opportunities, or business interruption, arising out of or related to this EULA, the Services, outputs, Customer Content, third-party services, or any reseller arrangement, regardless of the legal theory.

Nothing in this EULA limits liability for gross negligence, fraud, willful misconduct, death or personal injury caused by negligence, or any liability that cannot be excluded or limited by law.

your unlawful use of the Services, or except to the extent caused by Newcode's breach of this EULA, gross negligence, or willful misconduct.

11. INDEMNITY

You will defend, indemnify, and hold harmless Newcode, its affiliates, licensors, providers, officers, directors, employees, agents, and contractors from and against any third-party claim, demand, action, investigation, loss, liability, damage, fine, penalty, cost, or expense, including reasonable legal fees, arising out of or related to:

- a) your breach of this EULA;
- b) your unlawful use of the Services; or
- c) any claim that Customer Content, your instructions, prompts, outputs used or distributed by you infringes, misappropriates, or violates a third party's rights or applicable law.

12. CHANGES TO THIS EULA

Newcode may update this EULA from time to time by posting an updated version. The updated EULA will be effective as of the date of posting. Your continued use of the Services after the updated EULA takes effect constitutes your acceptance of the updated EULA.

13. GOVERNING LAW AND CONTACT

This EULA is governed by the Laws of New York, without regard to conflict of law principles.



The parties will first seek to resolve disputes through good-faith negotiations and, where appropriate, mediation. If a dispute is not resolved, it will be brought exclusively in the state or federal courts located in New York County, New York, and each party irrevocably consents to the personal jurisdiction and venue of those courts. Each party waives any objection based on inconvenient forum or improper venue. To the fullest extent permitted by law, each party waives any right to a jury trial and any right to bring or participate in any class, collective, consolidated, private attorney general, or representative action. Either party may seek injunctive or other equitable relief in any court of competent jurisdiction to protect its intellectual property, confidential information, security, or other proprietary rights.

Questions about this EULA may be sent to **support@newcode.ai**.